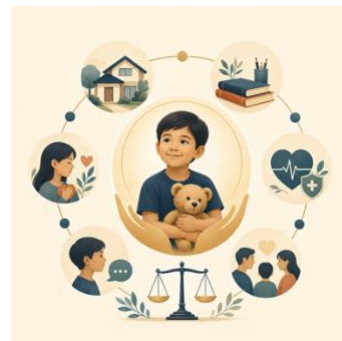


A PRACTICAL UNDERSTANDING OF CUSTODY, CARE AND CONTROL, AND GUARDIANSHIP IN MALAYSIA

Under the Malaysian civil family law, particularly the [Law Reform \(Marriage and Divorce\) Act 1976](#) (“LRA 1976”), the terms “custody”, “care and control” and “guardianship” frequently arise when parents separate or divorce.

Although these concepts are closely related and sometimes overlap, they are not necessarily interchangeable. Most importantly, the precise rights and responsibilities of each parent will ultimately depend on the terms of the court order.



Understanding the Distinctions

Term	Practical meaning
Custody	Legal authority concerning the child’s upbringing and education, subject to the terms of the court order.
Care and control	Responsibility for the child’s residence, daily care, supervision and routine.
Guardianship	Wider legal responsibility for the child’s welfare and, where applicable, the child’s property.
Access	The arrangements that allow the child to spend time or communicate with the parent who does not have day-to-day care.

What Is Custody?

Custody generally refers to the legal authority granted to a person in relation to a child.

Section 89(1) of the LRA 1976 provides that, subject to any conditions imposed by the court, a person granted custody is entitled to decide questions concerning the child’s upbringing and education.



Under **section 89(2) of the LRA 1976**, a custody order may also contain conditions relating to matters such as:

- the place where the child is to reside;
- the manner in which the child is to be educated;
- the religion in which the child is to be brought up;
- the child being temporarily placed in the care and control of another person;
- visitation and access by the parent who has not been granted custody; and
- restrictions against taking the child out of Malaysia.

Custody may be granted on a joint or sole basis:

- **Joint custody** generally means that both parents retain the rights and responsibilities specified in the court order and may be required to consult each other on important matters affecting the child.
- **Sole custody** generally means that one parent is granted the authority specified in the order, subject to any conditions imposed by the court and any guardianship or access rights retained by the other parent.

Joint custody does not necessarily mean that the child must spend an equal amount of time living with each parent. It ordinarily concerns parental authority and participation in decision-making rather than an equal division of the child's residence.

As the terms "custody" and "guardianship" may overlap in certain respects, the wording of the court order must always be examined carefully.

What Are Care and Control?

"Care and control" principally concerns the child's physical care and day-to-day living arrangements.

In practical terms, this includes:

- providing meals, clothing and other daily necessities;
- managing school attendance and homework;
- attending to routine medical appointments;
- supervising the child's daily activities;
- determining the child's ordinary routine; and
- providing the child's primary place of residence.



The parent granted care and control will normally be the parent with whom the child primarily resides. That parent will generally be responsible for routine and immediate decisions affecting the child.

However, an award of care and control does not necessarily give that parent the exclusive right to make every major decision concerning the child. Such decisions may still require consultation with the other parent, particularly where the parties retain joint custody or joint guardianship.

In *Helen Ho Quee Neo v Lim Pui Heng* [1974] 2 MLJ 51, the court distinguished legal custody from physical care and control. Care and control concern the child's physical custody and daily life, whereas legal custody carries a broader authority over matters such as the child's upbringing and education.

A similar distinction may be observed in *Chang Ah May @ Chong Chow Peng (f) v Francis Teh Thian Sar* [1991] 1 CLJ 309; [1991] 2 CLJ Rep 412, where the High Court granted the mother "custody, care and control" of the infant. The court's use of the complete phrase "custody, care and control", instead of "custody" alone, indicates that custody is broader than mere care and control. On this interpretation, care and control form constituent elements of the wider concept of custody.

What Is Guardianship?

Guardianship concerns the wider legal responsibility for a child's person and, where applicable, the child's property.



Under sections 3 and 4 of the [Guardianship of Infants Act 1961 \("GIA 1961"\)](#):

- a guardian of the child's person is responsible for matters including the child's support, health and education; and
- a guardian of the child's property may be responsible for controlling and managing property belonging to the child, subject to statutory restrictions and the supervision of the court.

Section 5 of the GIA 1961 recognises the equal rights and authority of a mother and father in relation to the custody and upbringing of their child and the administration of the child's property.

Depending on the terms of the order, guardianship may involve participation in important long-term decisions concerning matters such as:

- education;
- religion;
- serious medical treatment;
- passport applications and overseas travel;
- relocation or a change in the child's permanent residence; and
- the management of property belonging to the child.

A parent may therefore remain the child's legal guardian even though the child resides with the other parent. An award of custody, care and control to one parent does not necessarily remove the other parent's guardianship rights unless the court order expressly provides otherwise.

A Practical Example

Suppose a court order provides as follows:

"The parties shall have joint custody and joint guardianship of the child, with care and control granted to the mother and reasonable access granted to the father."

In practical terms, this would generally mean that:

- both parents remain involved in important decisions affecting the child;
- the child primarily resides with the mother;
- the mother manages the child's ordinary daily care, supervision and routine; and
- the father may spend time and communicate with the child in accordance with the agreed or court-ordered access arrangements.

The parents' precise rights will nevertheless remain subject to any additional conditions contained in the court order.

What Is Access?

Access enables a child to maintain a relationship with the parent who does not have the child's day-to-day care.

Access arrangements may include:

- alternate weekends;
- overnight stays;
- school holidays;
- festive occasions and birthdays;
- telephone or video calls; and
- reasonable communication with the child.



Sections 89(2)(c) and 89(2)(d) of the LRA 1976 empower the court to make appropriate visitation and access arrangements.

In *Leong Sam Moy v Low Chee Thiam* [1997] 2 CLJ Supp 212, the court recognised that access is fundamentally a right of the child rather than merely a right of the parent. Accordingly, the court must consider whether the proposed access arrangements promote the child's welfare.

Where necessary to protect the child, the court may impose conditions on access, including supervised access or restrictions on the time, place and manner in which access is exercised.

The Child's Welfare Comes First

A custody dispute is not intended to reward one parent or punish the other.

Under section 88(2) of the LRA 1976 and section 11 of the GIA 1961, the welfare of the child is the court's primary consideration. Subject to the child's welfare, the court may also consider:

- the wishes of the parents; and
- the wishes of the child, where the child is of an age to express an independent opinion.

In *Mahabir Prasad v Mahabir Prasad* [1982] 1 MLJ 189, the Federal Court affirmed that the welfare of the child must be the first and paramount consideration, with all other considerations being subordinate.

The court's ultimate objective is therefore to establish an arrangement that safeguards the child's stability, safety, emotional well-being and overall development.

Conclusion

In summary:

- **Custody** generally concerns legal authority over the child's upbringing and education.
- **Care and control** concern the child's residence, daily care, supervision and routine.
- **Guardianship** concerns the wider legal responsibility for the child's welfare and, where applicable, the child's property.
- **Access** allows the child to maintain a meaningful relationship with the parent who does not have day-to-day care.

These concepts are closely connected, and their scope may overlap. Parents should therefore examine the exact wording of the court order rather than relying solely on the label attached to each arrangement.

Above all, any arrangement concerning custody, care and control, guardianship or access must be guided by the child's best interests and welfare.

References

1. *Law Reform (Marriage and Divorce) Act 1976*, sections 88 and 89.
2. *Guardianship of Infants Act 1961*, sections 3–5 and 11.
3. *Helen Ho Quee Neo v Lim Pui Heng* [1974] 2 MLJ 51.
4. *Chang Ah May @ Chong Chow Peng (f) v Francis Teh Thian Sar* [1991] 1 CLJ 309; [1991] 2 CLJ Rep 412.
5. *Leong Sam Moy v Low Chee Thiam* [1997] 2 CLJ Supp 212.
6. *Mahabir Prasad v Mahabir Prasad* [1982] 1 MLJ 189.
7. Normi Abdul Malek, "[Unresolved Issues in Custody Matters: The Position in Malaysia](#)" (2011) 7(13) *Journal of Applied Sciences Research* 2240–2248.

Disclaimer: This article provides general information on Malaysian civil family law and principally concerns non-Muslim families. It does not constitute legal advice. Muslim custody and guardianship matters are governed by the applicable State Islamic family law enactments.